LANXTOR

E1 Terms and License Agreement

Version of November 11, 2026 · Lanxtor Inc., 7545 Irvine Center Drive, Suite 200, Irvine, California 92618, USA
Always available at https://www.lanxtor.com/e1-terms.html

PART A. THE AGREEMENT

1. About this agreement

This E1 Terms and License Agreement (the "Agreement") is between Lanxtor Inc., a Delaware corporation, 7545 Irvine Center Drive, Suite 200, Irvine, California 92618, USA ("Lanxtor", "we", "us"), and the customer: the company or other organization that orders, subscribes to, installs or uses E1, together with every person who uses E1 for it ("Customer", "you").

It contains the terms and conditions of sale and the end-user license agreement for E1 in one document. It applies to every form of E1: E1 Cloud (software as a service), the desktop app, E1 Reviewer for iPad, installations in the Customer's own cloud or on its own servers, the AI features, the content packages, and the professional services Lanxtor provides for E1.

It binds the Customer at two levels. At company level, the Customer accepts it by placing an order (section 2). At person level, every individual user, administrators included, accepts it in E1 with a checkbox before their first use, for themselves and for the Customer. Both acceptances refer to the same Agreement; neither replaces the other.

E1 is offered only to businesses, public bodies, universities and other organizations, and to individuals acting in their trade, business or profession. It is not offered to consumers.

The Agreement is always available at https://www.lanxtor.com/e1-terms.html, as a page and as a PDF, and in E1 under Help > Terms and conditions. Lanxtor refers to that address in its quotes, offers, order confirmations and invoices.

2. How the agreement is concluded

The Agreement becomes binding on the Customer at company level by the first of the following:

- The Customer sends a purchase order, signs an order form or otherwise accepts a quote or offer of Lanxtor that refers to this Agreement. A purchase order that accepts a quote, in whole or in part, accepts this Agreement as the terms of that quote, even if the purchase order does not mention it.
- The Customer orders, starts a trial or subscribes online, for example on lanxtor.com or in E1.
- The Customer pays an invoice of Lanxtor that refers to this Agreement.
- A person of the Customer accepts it in E1, or the Customer otherwise installs, accesses or uses E1.

A quote or offer of Lanxtor is valid for the period stated in it, or for 30 days if none is stated. Lanxtor may correct obvious errors in a quote. An order becomes binding on Lanxtor when Lanxtor confirms it in writing (email is enough), provides access to E1, or sends the first invoice, whichever is first.

Terms in the Customer's purchase order, request for quotation, supplier portal, vendor registration or general terms of purchase do not apply and do not become part of the Agreement, even if Lanxtor accepts or fulfils the purchase order, signs for receipt, or does not object to them. They apply only where an authorized signatory of Lanxtor agrees to them in a document that names the clauses that apply.

Each person who accepts the Agreement, or places an order, for the Customer confirms that they are authorized to bind the Customer. If they are not, they are bound personally, and the Customer may not use E1.

3. The contract documents and their order

The contract between Lanxtor and the Customer consists of the following documents. Where they differ, the earlier one in this list prevails, but only for the matter on which it differs:

- a separate written agreement signed by both parties that expressly changes this Agreement;
- the order: Lanxtor's quote or offer as accepted by the Customer's purchase order, an order form, or the order placed online, with its products, quantities, prices, term and any special conditions;

- the data processing agreement (DPA), for the processing of personal data;
- a service level agreement (SLA) or statement of work (SOW), where one is agreed;
- this Agreement;
- the Documentation.

Each order is a separate contract under this Agreement. Information on Lanxtor's website, in brochures and in presentations is general product information and not an offer or a commitment, unless the order includes it.

4. Definitions

- "E1" means the E1 software and services in every form Lanxtor provides them, including E1 Cloud, the desktop app, E1 Reviewer for iPad, Installations, the AI Features, Content Packages, the Integration API, the Documentation, and every update, upgrade, fix and new version of them.
- "E1 Cloud" or "Cloud Service" means E1 provided by Lanxtor as software as a service, hosted by Lanxtor or its sub-processors and used through a browser, the desktop app or E1 Reviewer.
- "Installation" means E1 that the Customer, or a provider on its behalf, runs in the Customer's own cloud account or on its own servers (an enterprise installation).
- "AI Features" means the functions of E1 that use machine learning or language models, including Alex in its Co-engineer, Ask, Agent and Plan modes, design suggestions, sheet reviews, voice transcription, the reading and extraction of documents, drawings and data, company knowledge, team memory, and any similar function added later.
- "AI Provider" means the third party that operates a language model or other AI model the AI Features use, as listed in E1 and in the Documentation.
- "Input" means what the Customer or its users give to the AI Features: prompts, questions, voice, files, drawings, project data and context. "Output" means what the AI Features return: text, answers, suggestions, findings, data, drawings and changes to a project.
- "Customer Data" means all data, content and files the Customer or its users put into E1, or that E1 makes for them, including projects, drawings, objects, lists, documents, revisions, comments, tasks, chat, Input, Output, company libraries, catalogs, rules and settings. Customer Data does not include Usage Data or E1 itself.
- "Usage Data" means technical and statistical data about the operation and use of E1, such as logs, performance and error data, security events, license and seat counts, AI credit consumption, and, where the person has agreed, usage statistics. It does not include the content of Customer Data.
- "Users" means the individuals the Customer allows to use E1 under its licenses: its employees, and its contractors, consultants and clients working on its projects.
- "Administrator" means a User who manages the Customer's organization in E1: its members, licenses, roles, permissions, policies, sign-on and billing.
- "License" means the right to use E1 the Customer ordered or was given, of a type such as Editor Pro, Editor Basic, Reviewer, Viewer, University, Student, Enterprise or a trial, for one named User and a subscription term.
- "Subscription Term" means the period for which a License or the Cloud Service is ordered, including each renewal.
- "Content Packages" means the libraries, object classes, attributes, symbols, catalogs, templates, rules and similar content Lanxtor provides with E1.
- "Documentation" means the user guides at lanxtor.com, the E1 Guide and the help in E1, the E1 Cloud specifications, and the technical documentation Lanxtor provides, as updated from time to time.
- "Professional Services" means training, onboarding, configuration, data migration, import, content creation, integration, custom development, consulting and similar services for E1.
- "Affiliate" means an entity that controls, is controlled by, or is under common control with a party, where control means owning more than 50 % of the voting interests.
- "In writing" includes email and acceptance in E1, unless a section requires a signature.

PART B. LICENSES AND USE

5. Your license

Subject to the Agreement and to payment of the fees, Lanxtor grants the Customer, for each License and for its Subscription Term, a non-exclusive, non-transferable, non-sublicensable, worldwide right for its Users to access and use E1 for the Customer's internal business purposes, including the engineering work the Customer does for its own clients.

For the desktop app and E1 Reviewer, this includes the right to install them on the devices the Users use, and to make the copies needed to install, run and back them up. For an Installation, it includes the right to install and run E1 in the environment stated in the order, in the number of instances, environments (such as production, test and development) and Licenses ordered.

E1 is licensed in object code only. The Customer receives no source code, and no right to it.

E1 is licensed, not sold. All rights not expressly granted remain with Lanxtor and its licensors. No right is granted by implication or estoppel.

If a License is not paid when due, after the reminder of section 39, the rights under that License are suspended until it is paid.

6. Licenses, named users and seats

Each License is for one named User. It may not be shared, and one account may not be used by more than one person. A License may be moved to another User when the first no longer needs it (for example on leaving the Customer), but not to share it between people in turn or to avoid buying Licenses.

What each type of License may do is described in E1 and in the Documentation (for example: an Editor edits projects; a Reviewer comments, redlines and reviews; a Viewer reads). Limits shown with the License or the plan apply, such as the number of Editors in a plan, the free Reviewers per Editor, AI credits, storage and projects.

The Customer may let its Affiliates, contractors, consultants and clients use E1 as Users under its Licenses, for the Customer's projects. The Customer is responsible for them as for itself, and for all use of E1 under its account.

An organization in E1 belongs to the Customer. Its Administrators act for the Customer.

7. Trials, students, universities, free licenses and preview features

Trial: a trial lets the Customer evaluate E1 for the period shown when it starts (30 days unless stated otherwise), within the limits shown. At its end, E1 becomes read-only for the organization until Licenses are ordered; Lanxtor keeps the Customer Data for the period shown in E1 and then deletes it.

University and Student: these Licenses are for teaching, learning and academic research only, for the period stated (for example three months at a time, renewed per term), and may not be used for paid, commercial or client work. Lanxtor may ask for proof of eligibility.

Free Licenses (such as Viewers and the free Reviewers per Editor) are part of the Customer's paid subscription and end with it.

Preview, beta, early-access and experimental features, and features marked as under construction, are provided for evaluation. They may be incomplete, change or be withdrawn at any time, and are not covered by service levels or support.

Trials, University, Student and preview features and free Licenses are provided "as is", without any warranty, indemnity or service level, and Lanxtor's total liability for them is limited as stated in section 49, except where the law does not allow it.

8. What you may not do

Except where this Agreement or mandatory law expressly allows it, the Customer and its Users may not, and may not let others:

- copy, change, translate, adapt or make derivative works of E1, beyond the copies this Agreement allows;
- decompile, disassemble, reverse engineer or otherwise try to obtain the source code, models, algorithms, prompts or structure of E1, except as far as mandatory law allows this despite this restriction (for example to make E1 interoperate with other software, and then only after asking Lanxtor for the information needed);

- get around, disable or tamper with a license check, a usage limit, AI credit limits, access control, security measure or technical protection;
- use E1 beyond the Licenses, plans and limits ordered, or share accounts or sign-in credentials;
- rent, lease, lend, resell, sublicense, distribute, time-share or host E1, or provide it as a service bureau, to third parties, other than giving the Customer's clients and partners access as Users for the Customer's projects;
- remove, hide or change any copyright, trademark, confidentiality or other notice in E1;
- use E1, its Output or the Documentation to build, train or improve a competing product or service, or to copy its features, user interface or content;
- publish or disclose benchmarks, performance tests or security tests of E1 without Lanxtor's prior written consent (security research under Lanxtor's vulnerability disclosure policy is allowed);
- scrape, crawl or extract data from E1 by automated means other than the Integration API and the export functions;
- use E1 in breach of the acceptable use rules of section 9 or of the AI rules of section 33.

If the Customer uses E1 beyond its Licenses, it pays for the additional Licenses at Lanxtor's list price from the day the use began, without prejudice to Lanxtor's other rights.

9. Acceptable use

The Customer and its Users use E1 only lawfully and in a way that does not harm Lanxtor, E1, other customers or third parties. In particular they may not:

- upload, store or send malware, viruses, or harmful or malicious code, or files they know to be infected;
- try to gain unauthorized access to E1, to other customers' data or organizations, or to the systems and networks behind E1, or test their vulnerability except under Lanxtor's vulnerability disclosure policy;
- overload, disrupt or degrade E1 Cloud, for example by excessive automated requests, denial-of-service attacks or use that deliberately goes beyond fair use;
- store or process content that is unlawful, infringes the rights of others, is defamatory, harassing, discriminatory or obscene, or that they have no right to use;
- store or process in E1 Cloud, unless agreed in the order: classified or government-restricted information; technical data controlled for export (such as ITAR-controlled data) where its export or storage abroad needs a license; payment card data; or special categories of personal data (such as health data);
- use E1 to send spam or unsolicited communications, or for phishing or fraud;
- impersonate another person, or misrepresent the source or authorship of content;
- use E1 to violate sanctions, export control, privacy, anti-corruption, competition or other laws.

Lanxtor may remove or block content that clearly breaks these rules or the law, and may suspend access as described in section 52.

10. Accounts, sign-in and security on your side

Each User has their own account. The Customer and its Users keep their passwords, passkeys, access tokens, API keys and devices secure, do not share them, and use the security functions E1 offers that are appropriate, such as the Customer's own sign-on, passkeys and re-authentication.

The Customer is responsible for everything done under its accounts and access tokens, unless caused by Lanxtor's breach of the Agreement. It tells Lanxtor without undue delay at security@lanxtor.com if it suspects unauthorized access or a security incident.

The Customer is responsible for the devices, browsers, networks, internet connection, operating systems and third-party software it uses to access E1, and for keeping them supported and secure.

11. Administrators and your organization

The Customer's Administrators decide who may use E1 in its organization, with which Licenses, roles and permissions, which policies apply (including the AI policy, privacy of names in history, and sign-on), and which integrations, access tokens and AI models are used. Lanxtor may rely on their instructions as the Customer's instructions.

Administrators may see the members, the access history, the audit events and the usage of the organization, and the history of the projects they may access. The Customer informs its Users of this, and obtains any consent

or works council agreement the law requires for it.

The Customer keeps at least one Administrator, and keeps its contact, billing and Administrator details current, so that Lanxtor can send notices about the service, security and billing.

PART C. E1 CLOUD: THE SOFTWARE AS A SERVICE

12. The cloud service

Lanxtor provides E1 Cloud during the Subscription Term substantially as described in the Documentation and the E1 Cloud specifications, using commercially reasonable care and skill.

E1 Cloud is hosted by Lanxtor on infrastructure of reputable cloud providers, in the region shown in the order or in the E1 Cloud specifications (today Microsoft Azure in the European Union). Lanxtor may change the hosting provider or data centers, keeping the region, the level of security and the obligations of the DPA, and tells the Customer in advance where the DPA requires it.

Lanxtor may use sub-processors and subcontractors to provide E1, such as hosting, email, payment and AI Providers. Lanxtor is responsible for them as for itself. The sub-processors that process personal data are listed as described in the DPA, which also describes how the Customer is told of changes and may object.

E1 Cloud is a multi-tenant service: the Customer's organization is separated from other customers' by access control and isolation in the application and the database. It is not a dedicated environment unless the order says so.

13. Availability, maintenance and service levels

Lanxtor aims for E1 Cloud to be available 99.5 % of each calendar month, measured at Lanxtor's side of the internet, excluding planned maintenance and the exclusions below. This is a target, not a guarantee, unless an SLA in the order commits to an availability with service credits.

Planned maintenance is announced in E1 or by email at least 48 hours in advance where it interrupts work, and is planned outside 06:00 to 20:00 Central European Time on working days where possible. Urgent maintenance (for example to fix a security vulnerability) may be done at short notice.

Unavailability caused by the following is not counted: the Customer's or its Users' systems, networks or use against the Agreement; the internet or networks outside Lanxtor's control; third-party services the Customer chose (such as its sign-in provider or its own AI model); force majeure; suspension under the Agreement; and preview features.

Where an SLA in the order commits to service credits, those service credits are the Customer's sole and exclusive remedy for the availability of E1 Cloud, except for its right to terminate for a serious and continued breach.

14. Support

Help for every feature is in the Documentation and in E1. Lanxtor provides support for paid Licenses by email and through E1, in English, during business days, with the response times stated for the Customer's plan or in the SLA. Support for trials and free use is best effort.

The Customer reports a problem with a description of how it shows itself, how it can be reproduced, and its effect, and helps Lanxtor analyse it, for example with screenshots, logs or, with the Customer's consent, access to the affected project.

Support does not include Professional Services, problems caused by the Customer's own changes, systems or third-party software, or use against the Documentation; Lanxtor may charge for these at its current rates after telling the Customer.

15. Updates and changes to E1

Lanxtor improves E1 continually. E1 Cloud is updated for all customers. The desktop app and E1 Reviewer update themselves or tell the User when an update is ready; the Customer installs updates of the desktop app and of Installations in reasonable time.

Lanxtor may change, add or remove features. It will not, during a paid Subscription Term, remove or materially reduce a substantial feature the Customer pays for, unless required by law, security or a third party (such as an AI Provider) that Lanxtor cannot reasonably replace; it then tells the Customer in advance where possible, and if

the change materially harms the Customer, the Customer may end the affected Licenses and receives a pro rata refund of prepaid fees.

Content Packages have versions. A project keeps the version it uses until it is upgraded, so that an update of a Content Package does not change existing projects unexpectedly.

Lanxtor supports the current release of the desktop app and the release before it. An Installation must run a supported release on a supported platform.

16. Security measures

Lanxtor maintains appropriate technical and organizational measures to protect E1 Cloud and the Customer Data in it against unauthorized access, loss and alteration, appropriate to the risk and the state of the art, as described in the Documentation, the Trust and Security page and the DPA. They include encryption of data in transit and at rest, isolation of customers' data, role-based access control, multi-factor sign-in options, logging and monitoring, vulnerability management, secure development, and no standing access of Lanxtor staff to Customer Data.

Lanxtor may change these measures, but not so that the overall level of protection decreases.

Lanxtor does not claim any certification (such as ISO 27001 or SOC 2) unless it states it in writing for the Customer. It answers reasonable security questionnaires of the Customer once a year, and further audits as agreed in the DPA or the order.

17. Backups and continuity

Lanxtor backs up E1 Cloud regularly and keeps backups for the period stated in the E1 Cloud specifications, to restore the service after a failure. Lanxtor aims for at most one hour of lost work and eight hours to restore the service in a disaster; these are targets, not guarantees.

Backups are made to protect the service, not to restore individual changes on request. E1 keeps the history of projects and lets Users undo their changes and restore deleted items from the Bin for the periods shown in E1. The Customer exports and keeps copies of the documents and deliverables it issues and of any data it must retain by law or contract.

For the desktop app with its own store and for Installations, the Customer stores the data and is responsible for its backups (at least daily, kept separately, and tested), its availability and its recovery.

18. Security incidents

If Lanxtor becomes aware of a breach of security that leads to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, the Customer Data in E1 Cloud, it tells the Customer without undue delay (for personal data, in time for the Customer to meet its legal deadlines, and as set out in the DPA), describes what is known, takes reasonable steps to contain it and limit its effects, and keeps the Customer informed.

Telling the Customer of an incident is not an admission of fault or liability.

19. Your data

The Customer Data belongs to the Customer (or its licensors). Lanxtor obtains no ownership of it.

The Customer grants Lanxtor and its sub-processors a non-exclusive, worldwide license, for the term of the Agreement and the deletion periods after it, to host, store, copy, transmit, process, display and back up the Customer Data only as far as needed to provide, secure and support E1 for the Customer, to prevent or address technical, security or abuse problems, as the Customer instructs (including through its settings and the AI Features it uses), and to meet legal obligations.

Lanxtor does not sell Customer Data, does not use it for advertising, and does not use it to train or improve AI models (section 29).

Lanxtor may use Usage Data to provide, secure, support, bill and improve E1, and may use and publish Usage Data in aggregated or de-identified form that does not identify the Customer, its Users or its projects. Usage statistics about how a person works are collected only with that person's consent, which they can withdraw in E1 at any time.

The Customer is responsible for the Customer Data: its accuracy, quality and legality, for having all rights and consents needed to put it into E1 and to let Lanxtor process it under the Agreement, and for the content of

documents it issues from E1.

20. Personal data, data location and transfers

Where the Customer Data contains personal data, the Customer is the controller and Lanxtor processes it as processor on the Customer's behalf, under the DPA, which forms part of the Agreement. Lanxtor provides the DPA on request and on its website once published; until the parties sign a DPA, Lanxtor's standard DPA applies. For personal data Lanxtor processes as controller (for example to manage accounts, billing and the website), its privacy policy at lanxtor.com/privacy.html applies.

Customer Data in E1 Cloud is stored in the region stated in the order or the E1 Cloud specifications. Lanxtor and its sub-processors may access or process it from other countries only as far as described in the DPA, with the safeguards the law requires for transfers out of the European Economic Area, the United Kingdom or Switzerland (such as the European Commission's standard contractual clauses or an adequacy decision).

Each party complies with the data protection laws that apply to it, including the GDPR where applicable.

21. Exporting, retaining and deleting your data

The Customer may export its Customer Data at any time during the Subscription Term, in E1's documented formats (such as its native project format, Excel, PDF and the exchange formats E1 supports), with its files. Administrators may export the whole organization.

After the Agreement or the last subscription ends, the Customer may export its data for 30 days (the "exit period"), during which E1 is read-only. Lanxtor then deletes the Customer Data from E1 Cloud within a further 60 days, and from backups on their normal cycle, unless the law requires Lanxtor to keep it. On request, Lanxtor confirms the deletion in writing.

Lanxtor supports the Customer in switching to another provider as required by applicable law (such as the EU Data Act), within the export functions of E1. Further assistance is a Professional Service.

22. Usage limits, storage and fair use

Plans and Licenses include limits shown in E1, in the order or in the Documentation, such as storage, file sizes, projects, API requests and AI credits. The Customer may buy more where offered.

E1 Cloud is shared by many customers. Lanxtor may apply reasonable rate limits and fair-use limits to protect the service. If the Customer's use materially exceeds normal use for its plan, Lanxtor tells the Customer and the parties agree on a suitable plan; until then, Lanxtor may limit the excess use.

23. Integration API and third-party services

The Customer may connect E1 to its own and third-party systems through the Integration API, access tokens, import and export, sign-on and other integrations E1 offers, within the limits and rules of the Documentation. It keeps access tokens secret and gives them only the scopes needed.

Third-party services the Customer connects to E1 (such as its sign-in provider, directory, document management system, ERP, storage, or its own AI model or AI account) are provided by the third party under the Customer's agreement with it. Lanxtor is not responsible for them, for their availability or for what they do with data the Customer lets E1 send to them. By connecting them, the Customer instructs Lanxtor to exchange data with them.

24. Installations in your own cloud or on your own servers

For an Installation, the Customer provides and operates, at its own cost and risk, the infrastructure, network, database, storage, sign-in provider, backups, monitoring and security of the environment, and any AI model it connects, as described in the Documentation. Sections 12, 13, 16, 17 and 18 apply to an Installation only as far as the order says.

The Customer installs updates of E1 in reasonable time and keeps the Installation on a supported release. Lanxtor may provide a license file that states the Licenses, add-ons and validity; after expiry and any grace period, the Installation becomes read-only, and the data stays accessible to the Customer.

The Customer gives Lanxtor, once a year on request, a written statement of the Licenses and instances in use, and allows a license audit as described in section 40.

Lanxtor has no access to an Installation or its data unless the Customer gives it, for example for support, and then only as far as given.

25. The desktop app and E1 Reviewer for iPad

The desktop app and E1 Reviewer are signed by Lanxtor and obtained from Lanxtor's website or official app stores. App store terms apply in addition to this Agreement for an app obtained from an app store; the app store provider is not a party to this Agreement and has no obligations for E1.

Where the desktop app keeps a local copy of data or works with its own store, the data on the device is under the Customer's control and responsibility, including its backup, encryption of the device, and deletion when a device is retired.

PART D. ARTIFICIAL INTELLIGENCE

26. The AI features

E1 contains AI Features. Some run inside E1 without a language model (for example the Co-engineer's rule-based findings); others send Input to a language model or other AI model operated by an AI Provider, or by the Customer, to produce Output. E1 shows which AI help a function uses and which model, and records model calls as described in the Documentation.

The AI Features are tools that assist engineers. They are not a person, not an engineer, and not a substitute for the professional knowledge, judgment and checks of qualified people.

Lanxtor may change the AI Features, the models and the AI Providers they use, for example when a model is improved, replaced or retired by its provider. Lanxtor keeps the AI Features substantially as useful as before, and tells the Customer of a change in AI Providers that process personal data as set out in the DPA.

27. AI models, AI Providers and your own models

Where Lanxtor provides the model, Lanxtor uses AI Providers under contracts that require them to process Input and Output only to provide the service to Lanxtor, to keep it confidential and secure, not to use it to train or improve their models, and to delete it within the period stated in the Documentation. The AI Providers that process personal data are sub-processors under the DPA.

Where the Customer connects its own model, model key, AI account or model server (for example with its own provider contract), Input and Output are processed by that provider under the Customer's agreement with it, and the Customer is responsible for that agreement, its settings, its costs and its compliance. Lanxtor is not responsible for that provider.

The Customer's organization decides, through its AI policy in E1, whether the AI Features may be used, which models and modes are allowed, and which data, such as data classed as restricted, may be sent to a model. E1 follows that policy. Data the policy does not allow to be sent is not sent.

28. Input and Output

As between the parties, the Customer owns its Input and, to the extent the law allows, the Output the AI Features produce for it, and Lanxtor assigns to the Customer any rights Lanxtor may have in that Output. Output forms part of the Customer Data.

The Customer is responsible for its Input: that it has the rights and consents needed to use it with the AI Features (including for third-party documents, standards and data it uploads), and that it does not break the Agreement or the law.

Because of the nature of AI, Output may not be unique: the AI Features may produce the same or similar Output for others, and the Customer obtains no rights in Output produced for others. Output may not be protected by copyright or other rights, and may resemble third-party material.

Lanxtor claims no rights in the Customer's Input or Output, except the license of section 19 to provide E1.

29. No training on your data, and confidentiality of AI use

Lanxtor does not use the Customer Data, Input or Output to train, fine-tune or improve any AI model, its own or a third party's, and does not let AI Providers do so, unless the Customer expressly agrees in writing for a specific purpose.

Features that learn within the Customer's organization (such as company knowledge and team memory) use the Customer's own data only for that Customer, stay inside its organization, are off until an Administrator turns them on where E1 says so, and can be turned off and deleted.

Input and Output are Customer Data and are treated as the Customer's confidential information. Lanxtor staff do not review them, except as far as needed to provide support the Customer asks for, to investigate abuse, security incidents or breaches of section 33, or to meet legal obligations.

Model calls are recorded in the organization's AI log as described in the Documentation, so that the Customer can see what was sent and received; the log is kept for the period stated there and is part of the Customer Data.

30. Accuracy, human oversight and your responsibility

AI is probabilistic. Output may be incomplete, inaccurate, outdated, inconsistent or wrong, even when it appears confident and correct ("hallucinations"), may misread documents, drawings, units or values, and may not reflect the codes, standards, regulations and project requirements that apply. The same Input can give different Output.

The Customer and its Users must review and verify Output, using qualified people, before relying on it, issuing it, or using it in a design, document, calculation, procurement, construction, operation, maintenance or safety decision. Output is not engineering advice, legal advice or a certification.

When Alex makes changes in a project (for example in Agent mode or by applying a suggestion), it acts under the name and with the permissions of the User who asked, and the changes are recorded in the project's history and can be undone. The User remains responsible for the changes made at their request. Users can choose to review changes before they are applied.

The AI Features must not be used to make, without meaningful human review, decisions that affect the safety of people, plants or the environment, or that produce legal or similarly significant effects for individuals.

To the extent permitted by law, Lanxtor gives no warranty that Output is accurate, complete, fit for a purpose, free of errors, or free of third-party rights, and section 46 applies to Output.

31. AI regulation and transparency

E1 and its AI Features are not designed or intended for any use classed as high-risk or prohibited under the EU Artificial Intelligence Act or similar laws, such as a safety component of a regulated product or of critical infrastructure management, employment decisions, or the evaluation of individuals. If the Customer uses E1 or its Output in such a way, the Customer is responsible for meeting the obligations that apply to that use.

E1 tells Users when they interact with an AI Feature and marks what Alex has done. Where the law requires that AI-generated content is disclosed or labelled, the Customer does so when it publishes or passes on Output.

Lanxtor provides, on reasonable request, the information about the AI Features that the Customer needs to meet its own obligations under AI laws, as far as the information is available to Lanxtor.

32. AI credits

Use of AI Features that call a model provided by Lanxtor consumes AI credits. The credits included in a plan, their period, and the price of additional credit packs are shown in E1 or the order. Credits are shared by the Customer's organization, expire at the end of their period unless stated otherwise, have no cash value, and are not refunded.

When the credits are used up, the AI Features that need them stop until more are available; the rest of E1 keeps working. Lanxtor may change how many credits an operation consumes when models or their costs change, and shows the consumption in E1.

AI Features that use the Customer's own model do not consume Lanxtor's AI credits; the Customer bears the costs of its own provider.

33. Acceptable use of the AI features

In addition to section 9, the Customer and its Users may not use the AI Features to:

- circumvent safety measures, usage limits, content filters or the organization's AI policy, including by prompt injection or "jailbreaking";
- extract, copy or reconstruct the models, system prompts, weights or the way the AI Features work, or use Output to develop or train AI models that compete with E1 or with the AI Providers;
- generate malware, or content that is unlawful, infringing, deceptive, discriminatory or harmful;
- make decisions about individuals that the law restricts, or to profile individuals without a lawful basis;
- present Output as human-made where that is misleading or the law requires disclosure;

- break the usage policies of the AI Providers that the Documentation names, as far as they apply to the Customer's use.

Lanxtor may limit or suspend the AI Features for a User or the organization that breaks these rules, as described in section 52.

34. Your engineering responsibility

E1 is a tool for engineers. The Customer and its Users remain solely responsible for their designs, drawings, lists, datasheets, documents, calculations and decisions, for checking them against the codes, standards, regulations, permits and requirements that apply to each project, for their professional duties, and for the safety of the plants they engineer, build or operate.

Rule checks, findings, calculations, catalog data, Content Packages, templates and AI Output support this work but do not guarantee that a design is complete, correct, safe or compliant. E1 is not certified for any regulated use (for example as safety-instrumented-system software, or under FDA or nuclear quality rules) unless Lanxtor confirms it in writing; the Customer evaluates whether the electronic records and signatures it makes with E1 meet the rules that apply to it.

The Customer uses only suitably qualified people to work with E1, and keeps appropriate review and approval processes.

35. Third-party software and content

E1 contains open-source and other third-party software. Its licenses, which Lanxtor provides with E1 or on request, apply to those components and prevail where they grant rights this Agreement does not. Nothing in this Agreement limits rights an open-source license gives.

Content from standards bodies, manufacturers and other third parties in a Content Package or catalog is used under their terms. Standards themselves are not included unless stated; the Customer obtains the standards it needs from their publishers.

PART E. COMMERCIAL TERMS

36. Fees and invoicing

The Customer pays the fees stated in the order. Unless the order says otherwise, subscription fees are invoiced annually or monthly in advance for each billing period, fees for additional Licenses pro rata from their start until the end of the current billing period, AI credit packs on purchase, and Professional Services monthly in arrears for time and materials, or as stated in the SOW.

Fees are based on the Licenses and services ordered, not on actual use, and are not reduced if fewer Licenses are used. Licenses may be reduced only with effect from the next renewal.

Prices are in the currency of the order and exclude value-added tax, sales tax, goods and services tax, withholding tax, duties and similar taxes, which the Customer pays in addition, except taxes on Lanxtor's income. If the Customer must withhold tax, it increases the payment so that Lanxtor receives the full amount, unless Lanxtor can recover the tax. The Customer gives Lanxtor its tax identification and any exemption certificates.

Travel, accommodation and similar expenses for Professional Services on site are invoiced at cost, as agreed in advance.

Lanxtor may send invoices electronically. The Customer tells Lanxtor in good time of any purchase order number or invoicing requirement; their absence does not delay payment.

37. Payment

Invoices are due 30 days from the invoice date, unless the order or invoice states another term, and are paid by bank transfer, card or another method Lanxtor offers, without deduction.

On late payment, Lanxtor may charge interest at 1 % per month or the highest rate the law allows, if lower, from the due date, and reasonable costs of collection.

The Customer may set off only claims that are undisputed or finally determined by a court, and may withhold payment only for claims under the same order. Disputes about an invoice are raised in writing within 30 days of the invoice date; the undisputed part is paid on time.

Fees already paid are non-refundable, except where this Agreement provides a refund or mandatory law

requires one.

38. Subscription term, renewal and price changes

Each subscription runs for the Subscription Term stated in the order (12 months if none is stated) and renews automatically for successive periods of the same length (but no longer than 12 months), unless either party gives notice of non-renewal at least 30 days before the end of the current term. Monthly subscriptions renew monthly and can be cancelled with effect from the end of the current month. Administrators can cancel on the account page or as the order says.

Lanxtor may change its prices with effect from a renewal by telling the Customer at least 60 days before it. If the Customer does not accept the change, it may give notice of non-renewal. Prices agreed for a fixed term in an order stay fixed for that term.

39. Late payment and suspension for non-payment

If an invoice remains unpaid more than 15 days after a reminder, Lanxtor may suspend the Customer's access to E1, or make it read-only, until it is paid in full, after a further notice of at least 7 days. The Customer Data stays intact and exportable during a suspension. Fees remain due during a suspension.

40. License compliance and audit

E1 Cloud records the Licenses and use of the Customer's organization, and Lanxtor may use those records to check compliance with the Agreement and to invoice additional use.

For Installations, Lanxtor may, at most once a year and with at least 30 days' notice, verify the Customer's compliance with the Licenses, by a self-certification of the Customer or by an audit during business hours, by Lanxtor or an independent auditor bound to confidentiality, without unreasonably disturbing the Customer's business. If the audit shows use beyond the Licenses, the Customer pays for the excess under section 8, and, if the excess is more than 5 %, the reasonable costs of the audit.

41. Professional services

Lanxtor provides Professional Services as described in the order or an SOW, with due care and skill, by qualified staff, and in line with good industry practice. Unless agreed otherwise, they are services, billed on time and materials in units of half an hour, and Lanxtor decides how to perform them, taking the Customer's reasonable wishes into account.

The Customer cooperates in good time and at its own cost: it names a contact person, provides the information, data, access, test data and decisions needed, and keeps copies of what it hands over. If the Customer's cooperation is late or incomplete, deadlines move accordingly and the additional effort is charged.

Where an SOW states deliverables subject to acceptance, the Customer tests them within 10 working days of delivery and accepts them unless they have material defects, which it reports in writing. A deliverable is accepted if the Customer does not report a material defect in that period, or uses it productively.

Lanxtor owns all rights in its tools, methods, know-how, Content Packages and in any improvement or extension of E1 made during the Professional Services, and they become part of E1 under the Customer's License. Content made specifically and only for the Customer from the Customer Data (such as its own library items, symbols, templates and rules) belongs to the Customer.

Defects in Professional Services are reported within 90 days of performance; Lanxtor then re-performs the defective services, and if that fails twice, the Customer may claim a reduction of the fee for them.

PART F. RIGHTS, WARRANTIES AND LIABILITY

42. Intellectual property

E1, its source and object code, models, prompts, designs, user interface, Content Packages, Documentation, and all improvements, derivatives and feedback-based changes of them, and all intellectual property rights in them, belong to Lanxtor and its licensors. The names LANXTOR, Lanxtor and E1 and their logos are trademarks of Lanxtor.

If the Customer or its Users give Lanxtor ideas, suggestions or feedback about E1, Lanxtor may use them freely and without obligation, without using the Customer's confidential information or naming the Customer.

43. Confidentiality

Each party keeps the other's confidential information confidential with at least reasonable care, uses it only to perform or exercise its rights under the Agreement, and discloses it only to its and its Affiliates' employees, contractors, advisors and sub-processors who need to know it and are bound to confidentiality at least as strict.

Confidential information includes the Customer Data (for the Customer), the non-public parts of E1, pricing and terms offered only to the Customer, roadmaps and security information (for Lanxtor), and any other information marked confidential or that a reasonable person would understand to be confidential.

This does not apply to information that is or becomes public without breach, was known to the recipient before, is received lawfully from a third party without confidentiality obligation, or is developed independently. A party may disclose confidential information where the law, a court or an authority requires it, after telling the other party where lawful, so that it can seek protection.

These obligations last during the Agreement and for five years after it, and for trade secrets and Customer Data for as long as they remain confidential.

44. Lanxtor's warranties

Lanxtor warrants that, for paid Licenses during the Subscription Term: E1 performs materially as described in the Documentation; Lanxtor does not materially reduce the overall security of E1 Cloud or the functionality the Customer pays for, except as section 15 allows; and Lanxtor uses industry-standard measures to keep viruses and malicious code out of E1.

A defect is a reproducible deviation from the Documentation that materially impairs the use of E1. The Customer reports it promptly in writing with the information of section 14. Lanxtor then remedies it within a reasonable time, at its choice by a fix, an update, a new version or a workaround that does not materially impair the work. If Lanxtor does not remedy a material defect within a reasonable time after a grace period set by the Customer in writing, the Customer may end the affected Licenses and receives a pro rata refund of the fees prepaid for the time after the end, or may claim a reasonable reduction of the fees.

The warranty does not apply to defects caused by changes not made by Lanxtor, by use against the Agreement or the Documentation, by an unsupported environment, release or platform, by third-party products or services, by the Customer Data, or by preview features, and does not apply to trials and free use.

The remedies of this section are the Customer's sole remedies for defects, without prejudice to section 49.

45. Your warranties

The Customer warrants that it is entitled to enter into the Agreement, that it has and will keep all rights, licenses and consents needed for the Customer Data and its processing under the Agreement, that its use of E1 complies with the Agreement and the law, and that it and its Users are not on a sanctions list.

46. Disclaimer

Except as expressly stated in the Agreement, and to the fullest extent permitted by law, E1, the AI Features, Output, Content Packages and Professional Services are provided "as is" and "as available", and Lanxtor and its licensors and suppliers disclaim all other warranties, conditions and representations, express, implied or statutory, including of merchantability, satisfactory quality, fitness for a particular purpose, title, non-infringement, accuracy, and uninterrupted, secure or error-free operation, and any that arise from course of dealing or usage of trade.

Lanxtor does not warrant that E1 will meet all the Customer's requirements, work with all hardware, software or services, be available without interruption, or that all errors will be corrected. The Customer is responsible for choosing E1 for its purposes.

47. Third-party claims against you

Lanxtor defends the Customer against any claim by a third party that the use of E1, as the Agreement allows, infringes a patent, copyright, trademark or trade secret of that third party, and pays the damages and costs finally awarded against the Customer by a court, or agreed by Lanxtor in a settlement, for that claim.

This applies if the Customer tells Lanxtor of the claim promptly in writing, gives Lanxtor sole control of the defense and settlement (Lanxtor does not settle a claim in a way that admits fault of the Customer or obliges it to more than stopping use, without its consent), and gives Lanxtor reasonable help at Lanxtor's cost.

If E1 is, or in Lanxtor's opinion may be, held to infringe, Lanxtor may at its choice and cost obtain the right for the Customer to continue using it, modify or replace it so that it does not infringe without materially reducing its functionality, or, if neither is commercially reasonable, end the affected Licenses and refund the fees prepaid for the time after the end.

Lanxtor has no obligation for a claim arising from the Customer Data, Input or Output, from changes or configurations not made by Lanxtor, from combining E1 with products, data or processes not provided by Lanxtor, from use against the Agreement or the Documentation, from a release that is no longer supported where a supported release would not infringe, from trials and free use, or from third-party components under their own licenses.

This section states Lanxtor's entire liability, and the Customer's sole remedy, for infringement of third-party rights, without prejudice to section 49.

48. Third-party claims against Lanxtor

The Customer defends Lanxtor, its Affiliates and their staff against claims by third parties arising from the Customer Data, Input, or from the Customer's or its Users' use of E1 or Output in breach of the Agreement or the law, including sections 9 and 33, and pays the damages and costs finally awarded or agreed in a settlement the Customer approves, on the same conditions as section 47 with the roles reversed.

49. Limitation of liability

Lanxtor is liable without limitation for damage caused by its intent or gross negligence, for injury to life, body or health, for fraud or fraudulent misrepresentation, under a guarantee it expressly gave, and where the applicable law does not allow liability to be limited or excluded (for example under product liability law).

In all other cases, and whatever the legal basis (contract, tort including negligence, breach of statutory duty, or otherwise):

- Lanxtor is liable for slight negligence only for the breach of an essential obligation, one whose performance makes the proper performance of the Agreement possible and on which the Customer may regularly rely, and only for damage that is typical and foreseeable for this kind of agreement when it was concluded;
- neither party is liable for loss of profit, revenue, business, contracts, production or anticipated savings, for delays, penalties or liquidated damages under the Customer's projects, for loss of goodwill, for business interruption, or for any indirect, incidental, special, consequential or punitive damage, even if advised of its possibility;
- for lost or corrupted data, Lanxtor is liable only for the cost of restoring it from backups the Customer is responsible for or that Lanxtor keeps under section 17, as far as restoration is possible with reasonable effort;
- Lanxtor's total liability for all claims arising out of or in connection with the Agreement in any 12-month period is limited to the fees the Customer paid and owed for E1 under the Agreement in the 12 months before the event that gave rise to the first claim; for trials, University, Student, free Licenses and preview features, it is limited to USD 100.

The limits of this section do not limit the Customer's obligation to pay fees, either party's liability for breach of confidentiality (section 43) other than in relation to Customer Data processed in E1 Cloud, the Customer's liability for breach of sections 8, 9 or 33, or either party's obligations under sections 47 and 48.

The limits also apply to the personal liability of each party's employees, officers, representatives, subcontractors and sub-processors.

A claim for damages for slight negligence expires one year after the Customer learned, or should have learned without gross negligence, of the damage and of Lanxtor as the party liable, except for claims for which the law does not allow a shorter period. The Customer tells Lanxtor of any damage promptly, so that Lanxtor can help limit it.

The parties agree that these limits are a reasonable allocation of risk, reflected in the fees.

50. Insurance

Each party maintains, during the Agreement, insurance appropriate to its business and its obligations under the Agreement with reputable insurers, such as general liability and, for Lanxtor, professional and cyber liability insurance.

PART G. TERM, SUSPENSION AND TERMINATION

51. Term of the agreement

The Agreement starts when it is concluded (section 2) and continues for as long as the Customer has a subscription, a License, an order in progress or uses E1. A User's acceptance in E1 continues while they use E1.

52. Suspension

Lanxtor may suspend a User, an access token, an integration, the AI Features or, where necessary, the Customer's organization, in whole or in part, if and as long as this is reasonably needed because: the use breaks sections 8, 9 or 33 or the law; it presents a security risk or threatens the integrity or availability of E1 or the data of others; Lanxtor must do so by law or an authority's order; or under section 39.

Lanxtor tells the Customer in advance where reasonably possible, otherwise promptly, limits the suspension to what is needed, and lifts it once the cause is removed. The Customer Data is not deleted because of a suspension.

53. Termination

Either party may terminate the Agreement or an order with immediate effect by written notice if the other party materially breaches it and does not remedy the breach within 30 days of a written notice describing it, or if the other party becomes insolvent, enters bankruptcy, liquidation or a similar proceeding, or makes an arrangement with its creditors, as far as the law allows termination for this reason.

Lanxtor may also terminate with immediate effect if the Customer or its Users repeatedly or seriously break sections 8, 9, 33 or 55, or if continuing would make Lanxtor break the law.

The right to terminate for another important reason under applicable law is unaffected.

If the Customer terminates for Lanxtor's breach, Lanxtor refunds the fees prepaid for the time after the termination. If Lanxtor terminates for the Customer's breach, the fees for the rest of the Subscription Term become due, less Lanxtor's saved costs.

54. What happens when the agreement ends

When the Agreement or an order ends, the Licenses concerned end, the Customer and its Users stop using E1 and uninstall the desktop app and Installations, except as needed to export data in the exit period, and pay all fees due. Section 21 applies to the Customer Data. Each party returns or deletes the other's confidential information on request, except copies it must keep by law or in backups.

Sections 4, 8, 19 (last paragraph), 21, 28, 29, 34, 36 and 37 (for amounts due), 40, 42, 43, 46 to 49, and 54 to 63 survive the end of the Agreement.

PART H. GENERAL TERMS

55. Export control, sanctions and anti-corruption

E1 is subject to export control and sanctions laws, including the U.S. Export Administration Regulations, sanctions of the U.S. Office of Foreign Assets Control, and the export control and sanctions laws of the European Union, the United Kingdom and other applicable countries. The Customer does not export, re-export, transfer or give access to E1, or use it, in breach of those laws, in or for a country or region under comprehensive embargo, for a person or entity on a restricted-party list, or for a prohibited end use (such as weapons of mass destruction or military end use where restricted).

The Customer confirms that neither it nor its Users, owners or Affiliates are on such a list or owned or controlled by someone on it. Lanxtor may refuse or end access where the law requires.

Each party complies with the anti-bribery and anti-corruption laws that apply to it, including the U.S. Foreign Corrupt Practices Act and the UK Bribery Act, and has not offered or received any improper payment or advantage in connection with the Agreement.

56. Compliance with laws and public-sector customers

Each party complies with the laws that apply to it in performing the Agreement. Lanxtor is not responsible for laws that apply specifically to the Customer's industry, projects or plants, unless it agreed to meet them in writing.

If the Customer is an agency or contractor of the United States government, E1 and the Documentation are "commercial computer software" and "commercial computer software documentation", and the government's rights are only those of this Agreement, as provided in FAR 12.212 and DFARS 227.7202. A public-sector customer whose procurement rules require different terms tells Lanxtor before ordering.

57. Publicity

Lanxtor may name the Customer, with its name and logo, as a customer of E1 on its website and in presentations, unless the Customer objects in writing, which it may do at any time with effect for the future. Any other publicity, such as a press release, case study or quote, needs the Customer's prior consent.

58. Subcontractors, assignment and change of control

Lanxtor may use Affiliates and subcontractors to perform the Agreement and remains responsible for them.

The Customer may assign or transfer the Agreement, an order or a License only with Lanxtor's prior written consent, which Lanxtor will not unreasonably refuse, except that no consent is needed for a transfer to the successor of the Customer's entire business or the business that uses E1, if the Customer tells Lanxtor in writing and the successor is not a competitor of Lanxtor and is not in breach of section 55. Lanxtor may assign the Agreement to an Affiliate or to a successor of its business with E1.

59. Force majeure

Neither party is liable for a delay or failure to perform, other than payment obligations, caused by events beyond its reasonable control, such as natural disasters, epidemics, war, terrorism, riots, government action, sanctions, failures of the internet, power or public networks, failures of a cloud or AI provider not caused by the party, cyberattacks that could not be prevented by reasonable measures, strikes not limited to the party's own staff, or similar events. The affected party tells the other promptly and does what it reasonably can to limit the effects. If the event lasts more than 60 days, either party may end the affected order, and the Customer receives a refund of fees prepaid for the time after the end.

60. Changes to this agreement

Lanxtor may change this Agreement, for example for new features, new services, new kinds of Licenses, changes of the law or of AI Providers, or security. The current version, with its date, is always at https://www.lanxtor.com/e1-terms.html and in E1 under Help > Terms and conditions.

For a paid subscription, a change takes effect at the start of the next renewal, unless it is needed earlier by law or for security, or concerns only new features or services, or is not to the Customer's disadvantage; Lanxtor tells the Customer of a change that is to its disadvantage at least 30 days in advance. If the Customer does not accept such a change, it may end the affected subscriptions with effect from the date the change takes effect and receives a refund of fees prepaid for the time after that.

E1 shows each User the version in force, and the User accepts it before continuing to use E1. A new order, and each renewal, is subject to the version in force at that time.

61. Notices

Notices to Lanxtor are sent to info@lanxtor.com, or by mail to the address in section 1; notices of security incidents to security@lanxtor.com. Notices to the Customer are sent to the email address in the order, of its billing contact, or of its Administrators, or are shown in E1. Notices of breach or termination are sent by email and, where the Agreement requires a signature, also by registered mail or courier. A notice by email is received when sent, unless the sender receives a message that it was not delivered.

62. Governing law and disputes

The Agreement, and any dispute or claim arising out of or in connection with it or its conclusion, are governed by the laws of the State of Delaware, USA, without regard to its conflict-of-laws rules. The UN Convention on Contracts for the International Sale of Goods and the Uniform Computer Information Transactions Act do not apply.

The parties first try to settle a dispute through good-faith negotiation between their responsible managers, for at least 30 days after one of them gives written notice of it.

The state and federal courts located in Delaware have exclusive jurisdiction, and each party submits to it. Lanxtor may also bring a claim in the courts where the Customer has its seat. Either party may seek urgent

interim relief, such as an injunction to protect its intellectual property or confidential information, in any competent court.

Where the Customer has its seat in the European Union, the United Kingdom or Switzerland, the mandatory provisions of the law of that country that cannot be excluded by agreement remain unaffected.

63. Final provisions

Entire agreement: the documents of section 3 are the entire agreement of the parties about E1 and supersede prior proposals, discussions and agreements about it. No oral side agreements exist. Neither party relies on a statement not contained in them, except for fraudulent misrepresentation.

Form: changes and waivers are valid only in writing; for changes of this Agreement other than under section 60, they need the signature of authorized representatives of both parties, or an order that names the clause it changes. The Agreement may be accepted electronically, and the parties' electronic acceptance, records of acceptance in E1 and emails are evidence of it.

Severability: if a provision is invalid or unenforceable, the rest remains valid, and the provision is replaced by a valid one that comes as close as possible to its economic purpose; the same applies to a gap.

No waiver: failing or delaying to exercise a right is not a waiver of it.

Independent parties: the parties are independent contractors. Nothing creates a partnership, joint venture, agency, franchise or employment relationship.

No third-party beneficiaries: the Agreement gives no rights to third parties, except the protection of section 49 for the persons named there.

Interpretation: headings are for convenience only. "Including" means "including without limitation". A reference to a law includes its amendments and replacements.

Language: the Agreement is written in English. A translation is for information only; the English text prevails.